

At a term of the Supreme Court held in and for the County of Cortland, at the Courthouse thereof, on October 24, 2025.

PRESENT: HON. MARK G. MASLER
Justice Presiding.

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

**U.S. BANK, NATIONAL ASSOCIATION AS
LEGAL TITLE TRUSTEE FOR TRUMAN 2016
SC6 TITLE TRUST,**

Plaintiff(s),

v

**VICTOR LEONARD A/K/A VICTOR DEAN
LEONARD, AS HEIR AND DISTRIBUTE OF
THE ESTATE OF MARY L. LEONARD; NEW
YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; UNITED STATES OF AMERICA
(NORTHERN DISTRICT); JOSHUA MACLEAN;
BRIAN ARMSTRONG; ROBERT LEONARD;
REGINA ALLEN; REGINA LEONARD,**

Defendant(s).

**JUDGMENT
OF FORECLOSURE
AND SALE**

Index No.: EF24-367

MORTGAGED PROPERTY:
8 Center Street, a/k/a 8 East
Center Street
McGraw, NY 13101

Section: 88.19
Block: 01
Lot: 036.000

Mortgage Servicer:
Carrington Mortgage Services,
LLC

Phone #: 1-800-561-4567

ON the Summons, Verified Complaint and Notice of Pendency duly filed in the Cortland County Clerk's Office on June 24, 2024, and all proceedings thereon; and on reading and filing the Notice of Motion dated September 18, 2025, and the Affirmation of Juliana Thibaut, Esq., dated September 18, 2025, with exhibits annexed thereto, showing that all of the Defendant(s) herein have been duly served within this State with a copy of the Summons in this action, or have voluntarily appeared pro se or by their respective attorneys, or after due diligent efforts to

effectuate service having been unsuccessful and a determination made that such service upon certain Defendant(s) cannot be effected; and on proof of service upon and appearance, if any, by the Defendant(s) herein heretofore filed in this action; and stating that more than the legally required number of days have elapsed since said Defendant(s) were so served; and that all Defendant(s) herein have defaulted in pleading by failing to serve an answer to said Complaint, nor has their time to do so been extended; and Plaintiff having established to the court's satisfaction that judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (i); and

UPON proof that any non-appearing defendants are not absent, in accordance with RPAPL §1321 (2); and

A REFEREE having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the report of James J. Baranello, Esq., dated July 23, 2025, showing the sum of \$68,649.49 was due as of July 1, 2025, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Friedman Vartolo LLP, attorneys for plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the

Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of James J. Baranello, Esq., 39 Church Street, Cortland, New York 13045, (607) 758-8200, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale

within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the

Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$68,649.49 with interest at the note rate from July 1, 2025 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$3,205.18 adjudged to the Plaintiff for costs and

disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$5,650.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's

deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court,

the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

ORDERED, that the named Plaintiff, "U.S. Bank, National Association as Legal Title Trustee for Truman 2016 SC6 Title Trust" shall be substituted with "U.S. Bank Trust Company, National Association as Legal Title Trustee for Truman 2016 SC6 Title Trust" and that the

caption of this action shall be amended accordingly to reflect the proper alignment of the parties;
and it is further

ORDERED, that the caption of this action, as amended, shall read as follows:

**U.S. BANK TRUST COMPANY, NATIONAL
ASSOCIATION AS LEGAL TITLE TRUSTEE
FOR TRUMAN 2016 SC6 TITLE TRUST,**

Plaintiff(s),

Index No.: EF24-367

v

**VICTOR LEONARD A/K/A VICTOR DEAN
LEONARD, AS HEIR AND DISTRIBUTE OF
THE ESTATE OF MARY L. LEONARD; NEW
YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; UNITED STATES OF AMERICA
(NORTHERN DISTRICT); JOSHUA MACLEAN;
BRIAN ARMSTRONG; ROBERT LEONARD;
REGINA ALLEN; REGINA LEONARD,**

Defendant(s).

Said property is commonly known as 8 Center Street a/k/a 8 East Center Street,

McGraw, New York 13101.

Dated: November 7, 2025
Cortland, New York

ENTER



HON. MARK G. MASLER
Supreme Court Justice

Tammy L. Barriger
Tammy L. Barriger Deputy Clerk



CJ-2025-02221
11/07/2025 04:06:06 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At ~~on 11th~~ a Term of the
SUPREME Court held in the County of
CORTLAND, at the County Courthouse
thereof, on the 5th day of November,
20 25.

PRESENT: Hon. MARK G. MASER
JUSTICE OF THE SUPREME COURT

NAVY FEDERAL CREDIT UNION,

Plaintiff,

-VS-

DANIEL Q. PESTRIDGE; ANNA M. PESTRIDGE,

Defendants.

INDEX NO.: EF23-165

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
1465 McGraw-Marathon Road,
Marathon, NY 13803
COUNTY: CORTLAND
SBL#: 148.00-01-04.200

Mortgage Servicer: NAVY
FEDERAL CREDIT UNION

Mortgage Servicer Phone #: 703-
206-4229 OR 703-206-3540

UPON the Summons, Complaint, and Notice of Pendency filed in this action on
March 23, 2023, the Notice of Motion dated October 10, 2025, the affirmation by
[dated October 10, 2025, with Exhibits A-P] HGM
Jacqueline A. Carosa, Esq., the affidavit of merit and amount due by Carly Bell who is
Assistant Manager of NAVY FEDERAL CREDIT UNION, duly sworn to on June 25, 2025,
together with the exhibits annexed thereto, all in support of Plaintiff's motion for a
Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the
Summons and Complaint in this action, and has not served any answer to the Complaint
or otherwise appeared, nor had their time to do so extended; and it appearing that more



2025-05295

11/07/2025 03:57:58 PM

COURT & TRUST
Brooke Kemak, County Clerk

than the legally required number of days has elapsed since defendants DANIEL Q. PESTRIDGE and ANNA M. PESTRIDGE were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii);
and

UPON proof that non-appearing defendants DANIEL Q. PESTRIDGE and ANNA M. PESTRIDGE are not absent; in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Deborah Wolf Miller, Esq. dated September 6, 2025, showing the sum of \$167,530.40 due as of the date of said Report; and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Jacqueline A. Carosa, Esq., attorney for the Plaintiff, it is hereby ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

pursuant to the Terms of Sale and Foreclosure Auction Plan attached as
RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at Exhibit A
the Cortland County Courthouse, 46 Greenbush Street, Suite 301, Cortland, NY 13045, by and MGM
under the direction of Deborah Wolf Miller, Esq. who is hereby appointed Referee for that
purpose; that said Referee give public notice of the time and place of sale in accordance with
RPAPL §231 in The Cortland Standard, and it is further MGM

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge
(22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from
appointment") and §36.2 (d) ("Limitations on appointments based upon compensation");
and, if the Referee is disqualified from receiving an appointment pursuant to the provisions
of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from
accepting or retaining any funds for him/herself or paying funds to him/herself without
compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is
present at the sale or the Referee has received a written bid and Terms of Sale from
Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale
within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by
RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably
practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or ~~with the County Treasurer or in his/her~~ IOLA account, ~~as appropriate,~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, or, if Plaintiff is the successful bidder, any assignee or successor in interest to Plaintiff, if applicable, in accordance with RPAPL §1353 and the Terms of Sale annexed hereto as Exhibit A ~~Schedule "B"~~, which shall be deemed a binding contract and are incorporated herein by reference; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the

Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee with the County Treasurer or in his/her IOLA account, as appropriate, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more ~~—~~.

MGM ~~OR~~ In the event a sale was cancelled or postponed, Plaintiff shall compensate the

Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay]. ~~In the event that the property is sold to an entity other than the Plaintiff or its assignee, the Referee shall be entitled to an additional fee of \$750.00, to be paid by the third party purchaser, to close title;~~

MGM

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies, of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$167,530.40 which includes interest at the note rate from November 1, 2018 until May 23, 2025, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest

from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements \$2,456.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$6,350.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after

applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against DANIEL Q. PESTRIDGE and ANNA M. PESTRIDGE in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of

the property upon delivery of a certified or recorded copy of the Referee's Deed, which may be done in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof. Said property is commonly known as 1465 McGraw Marathon Road, Marathon, NY 13803. ~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~ *MGM*

ENTER:

DATED: *November 7, 2025*
Cortland, New York

MGM

Hon. Mark G. Maricel
Supreme Court Justice

Tammy L. Barriger
Tammy L. Barriger
Deputy Clerk



CJ-2025-02220

11/07/2025 03:57:58 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

la Tem
At Part 1 of the Supreme Court held in
and for the County of Cortland at the
Court House thereof in the City of
Cortland, New York, on October 23,
2025.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

PRESENT: Honorable Mark G. Masler, J.S.C.

EMPOWER FEDERAL CREDIT UNION,

Plaintiff,

-vs-

CHRISTOPHER ANDREWS, as Heir and as
Administrator of the Estate of William Andrews;
KEEGAN J. COUGHLIN, ESQ., as Guardian ad
Litem for Jessica N. Andrews, Heir of the Estate of
William Andrews;

PEOPLE OF THE STATE OF NEW YORK;
UNITED STATES OF AMERICA;

JOHN DOE and JANE DOE, the two defendants last
named being possible tenants in possession of
portions of premises under foreclosure, the names
being fictitious, their true names being unknown to
plaintiff,

Defendants.

INDEX NO: EF25-215

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:

3024 Route 215
Cortland, New York 13045

COUNTY: Cortland

SBL #: 106.00-01-44.200

Mortgage Servicer Name and

Telephone Number:

Empower Federal Credit Union
(315) 728-5004

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 10th
day of April, 2025, the Notice of Motion dated October 2, 2025, the Affirmation of Anthony
R. Hanley, Esq., dated October 2, 2025, and the exhibits annexed thereto, the Affidavit of Merit
by Irene Sciarrino who is VP Collections/Loan Servicing of Empower Federal Credit Union, duly
sworn to on June 26, 2025, all in support of Plaintiff's motion for a Judgment of Foreclosure and
Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons



2025-05293

11/07/2025 03:42:44 PM

COURT & TRUST
Brooke Kemak, County Clerk

and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so been extended, and it appearing that more than the legally required number of days has elapsed since defendants, Christopher Andrews, Keegan J. Coughlin, Esq., People of the State of New York, United States of America, John Doe and Jane Doe, were so served and/or appeared; and Plaintiff having established to the Court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavits of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Christopher Andrews, Keegan J. Coughlin, Esq., People of the State of New York, United States of America, John Doe and Jane Doe, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of James J. Baranello, Esq., dated September 11, 2025, showing the sum of \$174,971.62 due as of August 28, 2025, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Anthony R. Hanley, Esq. attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the

Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the

mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be

pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A
sold, within 90 days of the date of this Judgment, in one parcel, at a public auction^{at} the Cortland

County Courthouse, 46 Greenbush Street, City of Cortland, in the County of Cortland, State of

New York, by and under the direction of James J. Baranello, Esq., 39 Church Street, Cortland,

New York 13045; who is hereby appointed Referee for that purpose; ~~that the Referee shall hold~~

~~the auction in accordance with the then applicable Sixth Judicial District Foreclosure Auction~~

~~Rules and the COVID-19 Health Emergency Rules of Cortland County, which are incorporated~~

~~herein by reference~~; that said Referee give public notice of the time and place of sale in accordance

with RPAPL §231 in Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for himself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or

the Referee has received a written bid and ^{signed} Terms of Sale from Plaintiff, its successors and/or ^{MGM} assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR §2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff, in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or ^{LTOL account} _____ ^{Name of Depository} ^{MGM} in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the Purchaser, in accordance with RPAPL §1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the Purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale; or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceed of sale in his/her own name as Referee in said escrow or TOLA account Name of MGM Depository, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR §8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more; or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property, and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$174,971.62, with interest at the note rate from August 29, 2025, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending

consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,242 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 4,596.50 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into Court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the Purchaser at such sale and the Terms of Sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof

is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that the Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the Purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third" and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Estate of William Andrews, in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility

agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Purchaser or Purchasers at said sale default(s) upon the bid and/or the Terms of Sale, the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such

application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this Judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 3024 Route 215, Cortland, New York 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~ MGM

ENTER:

DATED: November 7, 2025
Cortland, New York

MGM
Hon. Mark G. Masler, Supreme Court
Justice

Tammy L. Barriger
Tammy L. Barriger-Deputy Clerk



**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At Part 1a Term of the Supreme Court of the State of New York, held in and for the County of CORTLAND at the Courthouse thereof, 46 Greenbush Suite 301 Cortland, NY 13045, on the 24th day of November, 2025.

P R E S E N T: Honorable Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
DITECH FINANCIAL LLC F/K/A GREEN TREE INDEX NO.: EF18-1304
SERVICING LLC,

Plaintiff,

vs.

JOHNNY E. MORRIS, JR. AKA JOHNNY E. MORRIS, ABBY M. MORRIS, DITECH FINANCIAL LLC F/K/A GREEN TREE SERVICING LLC, CORTLAND REGIONAL MEDICAL CENTER INC, FIRST NATIONAL BANK OF GROTON, NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE, PEOPLE OF THE STATE OF NEW YORK,

Defendant(s).

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:

10 LEON AVE
CORTLAND, NY 13045

COUNTY: CORTLAND

SBL#: Section 86.24, Block 01, Lot 15.100

Servicer: Selene Finance LP
Servicer Telephone: 877-768-3759

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on November 30, 2018, the additional Notices of Pendency filed on 10/8/21 and 11/4/24, the Notice of Motion dated September 21, 2025, the affirmation of Matthew Rothstein, dated September 21, 2025 with Exhibits A-S thereto Esq./the affidavit of merit and amount due by Dawn Fox who is Document Execution Specialist of Selene Finance LP, duly sworn to on November 07, 2023; together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

20-059248 - LaJ



2025-05701

12/08/2025 04:20:35 PM

COURT & TRUST
Brooke Kemak, County Clerk

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants JOHNNY E. MORRIS, JR. AKA JOHNNY E. MORRIS; ABBY M. MORRIS; DITECH FINANCIAL LLC F/K/A GREEN TREE SERVICING LLC; CORTLAND REGIONAL MEDICAL CENTER INC; FIRST NATIONAL BANK OF GROTON; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE; PEOPLE OF THE STATE OF NEW YORK, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants JOHNNY E. MORRIS, JR. AKA JOHNNY E. MORRIS; ABBY M. MORRIS; DITECH FINANCIAL LLC F/K/A GREEN TREE SERVICING LLC; CORTLAND REGIONAL MEDICAL CENTER INC; FIRST NATIONAL BANK OF GROTON; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE; PEOPLE OF THE STATE OF NEW YORK, are not absent, in accordance with RPAPL §1321(2);

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Kelly A. Damm, Esq., dated July 29, 2025, showing the sum of \$121,057.77 due as of November 26, 2023 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be; and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by

MGM the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto as exhibit A, at the The Cortland County Courthouse by and under the

direction of Kelly A. Damm, Esq., P.O. Box 256, Ithaca, NY 14851, 607-277-8601, keldamm@msn.com, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"),

and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates; which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said SOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows: MGM

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), Let (not to exceed) unless the property sells for \$50,000 or more. in the sum of 750.00. In the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$121,057.77 with interest at the note rate from November 26, 2023 ~~December 01, 2012~~, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,980 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,225 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third" and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against JOHNNY E. MORRIS and ABBY M. MORRIS in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED ADJUDGED AND DECREED, that U.S. BANK TRUST NATIONAL ASSOCIATION, NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR RCF 2 ACQUISITION TRUST be substituted into the caption in the place and stead of DITECH FINANCIAL LLC F/K/A GREEN TREE SERVICING LLC, and, following

such substitution, that the Clerk of the Court amend the docket and electronic docket accordingly;
and it is further

ORDERED, that the caption shall read as follows:

-----X
U.S. BANK TRUST NATIONAL ASSOCIATION, NOT
IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS
OWNER TRUSTEE FOR RCF 2 ACQUISITION
TRUST,

INDEX NO. EF18-1304

Plaintiff,

v.

JOHNNY E. MORRIS, JR. AKA JOHNNY E.
MORRIS, ABBY M. MORRIS, DITECH
FINANCIAL LLC F/K/A GREEN TREE
SERVICING LLC, CORTLAND REGIONAL
MEDICAL CENTER INC, FIRST NATIONAL
BANK OF GROTON, NEW YORK STATE
DEPARTMENT OF TAXATION AND FINANCE,
PEOPLE OF THE STATE OF NEW YORK,

Defendant(s).

-----X
And it is further;

ORDERED, that the Notice of Pendency filed on November 04, 2024 be deemed
filed, *nunc pro tunc*, to the date of the expiration of the Notice of Pendency on October 08, 2024;
and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this
Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in
this action, and any other parties or persons entitled to service, including the Referee appointed
herein; and it is further

20-059248 - LaJ

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 10 LEON AVENUE CORTLAND, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule "A".~~

DATED: December 2025
Cortland, New York

ENTER:

MGM

Hon. Mark G. Maslow
Supreme Court Justice

Brooke Kemak



CJ-2025-02404

12/08/2025 04:20:35 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Purchaser's Signature

Dated: _____

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

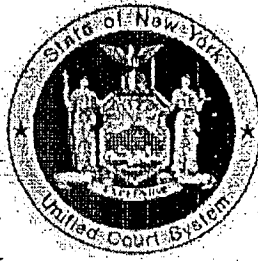
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24



2025-05702

12/08/2025 04:26:18 PM

COURT & TRUST
Brooke Kemak, County Clerk

At Part 1a Term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 3rd day of
December, 2025.

PRESENT: ~~Hon.~~ Hon. Mark G Masler, J.S.C.
JUSTICE OF THE SUPREME COURT

U.S. Bank Trust Company, National Association, as trustee,
as successor-in-interest to U.S. Bank National Association,
as Trustee for MASTR Asset-Backed Securities Trust 2007-
HE1 Mortgage Pass-Through Certificates Series 2007-HE1,
Plaintiff(s),

v.

Dennis Monroe a/k/a Dennis J. Monroe; Sherri Monroe a/k/a
Sherri A. Monroe; Timebuyer; Cortland Regional Medical
Center Inc; Laci Grant,

Defendant(s).

INDEX NO. EF23-694

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
4914 Creal Road
Homer, NY 13077

SBL #: Section 66.00 Block 05
Lot 10.000

Mortgage Servicer: PHH
Mortgage Services | Office of
Ombudsman

Mortgage Servicer Phone #:
(844) 995-3682

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 13th
day of December, 2023, the Notice of Motion dated October 27, 2025, the affirmation by
MGM dated October 27, 2025, with Exhibits G, P & Q
Barbara Dunleavy, Esq., the affirmation of merit and amount due by Daniel Delpesche, who is
Contract Management Coordinator, dated March 20, 2025, together with the exhibits annexed
thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendants, Dennis Monroe a/k/a Dennis J. Monroe,

Sherri Monroe a/k/a Sherri A. Monroe, Timebuyer, Cortland Regional Medical Center Inc., and Laci Grant, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Dennis Monroe a/k/a Dennis J. Monroe, Sherri Monroe a/k/a Sherri A. Monroe, Timebuyer, Cortland Regional Medical Center Inc., and Laci Grant, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Deborah Wolf Miller Esq. dated September 11, 2025, showing the sum of \$94,940.93 due as of March 19, 2025 ~~the date of said Report~~ and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at pursuant to the terms of sale and Foreclosure Auction Plan attached hereto as Exhibit A the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of MGM

Deborah Wolf Miller, Esq., PO Box 538, Ithaca, NY 14851; (607)277-0272 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that, except as set forth herein, the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, except as set forth herein, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more, or

In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in

the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$94,940.93 with interest at the note rate from March 19, 2025 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,753.53 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$_____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Dennis J. Monroe, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of
sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is
further

MGM
~~**ORDERED, ADJUDGED AND DECREED** that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof.~~

Said property is commonly known as 4914 Creal Road, Homer, NY 13077.

MGM
~~The legal description of the mortgaged property referred to herein is annexed hereto as
Schedule A.~~

ENTER

DATED: December 8 2025
Cortland, New York

MGM

Hon. Mark G Masler, J.S.C.
Justice of the Supreme Court

Brooke Kemak



CJ-2025-02405
12/08/2025 04:26:18 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Purchaser's Signature

Dated: _____

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
 2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
 3. The date, time and location shall be chosen by the Clerk.
 4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
 5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
 6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
 7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
 8. At his or her discretion, the Referee may choose not to accept cash.
 9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum-bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
-
10. All persons wishing to bid on properties will provide proof of identification.
 11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov kslits@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24